

DIVISION OF HOTELS AND RESTAURANTS

Safe Restaurant Operations

Important Information About Protecting Your
Customers and Operating Safely and Legally



SAFE RESTAURANT OPERATIONS

The Florida Department of Business and Professional Regulation's Division of Hotels and Restaurants licenses, inspects and regulates public lodging and food service establishments in Florida under Chapter 509, Florida Statutes. The mission of the Division is to protect the health and safety of the public by providing the industry with quality inspections and fair regulation.

The following is important information about protecting your customers and operating safely and legally.



Employee Health

Employee health is one of the most important measures for the prevention of foodborne illness. People who work in food service establishments are required to report certain foodborne illnesses, symptoms of foodborne illness, and exposure to foodborne illness to their employer. Depending upon the illness and/or symptom, the manager may be required to exclude (not allow to work in the food establishment in any capacity) or restrict (limit duties) the employee. In addition, the manager may be required to notify the Department of Health.

The "Big 6" foodborne illnesses all food service employees and managers should be aware of are Salmonella Typhi, Shigella, Shiga-toxin producing E. coli, Hepatitis A, Norovirus, and Nontyphoidal Salmonella.

Food service workers who experience vomiting or diarrhea caused by an infectious condition cannot work while they are ill and may not return to work until they have not had any symptoms for at least 24 hours.

Complete details for employee health requirements can be found in [Chapter 2-2, 2017 FDA Food Code](#).

Food Manager Certification

At least one certified manager is required for every public food service establishment. A certified food manager must be present when 4 or more people are engaged in food activities (storing, handling, preparing or serving food). Each manager has 30 days from date of hire to become properly certified and must recertify every five years. The accredited examination programs are:

- National Restaurant Association Educational Foundation ServSafe®
- National Registry of Food Safety Professionals
- 360training.com (Learn2Serve)
- Above Training/State Food Safety
- The Always Food Safe Company
- 1 AAA Food Manager

Food Service Employee Training

Florida requires training on foodborne disease prevention and professional hygienic practices for all food service employees who are responsible for the storage, preparation, display or service of food. The training must include personal cleanliness



(e.g. hand-washing), types and causes of foodborne illness, identification of time/temperature control for safety foods, techniques to prevent cross contamination, and how to control or eliminate harmful bacteria. Employees must receive training within 60 days of hire and be retrained every three years. The Division-contracted food safety training provider is the Florida Restaurant & Lodging Association (FRLA). Training can also be provided by an approved in-house program or by utilizing an approved third-party program.

Because only division-approved training programs are accepted as meeting the training requirement, all approved training programs are listed on the Division's Web site at: <http://myfloridalicense.com/DBPR/hotels-restaurants/>.

Additional information on both manager certification and food worker training may be found

at: **Health Control**

If necessary, disease-causing organisms can be controlled by time, rather than temperature, in a working supply of time/temperature control for safety (TCS) food. In order to have potentially hazardous food out from under temperature control, a written plan must be available for review by the inspector and specific requirements must be met. For the specific requirements for use of time as a public health control as well as an optional pre-written fill-in-the-blank plan, please visit <http://myfloridalicense.com/DBPR/inspection/>.

Hand Washing - The right way

Keeping hands clean is one of the most important ways to prevent the spread of infection and illness to others. Hand washing is simple and effective if done properly. The basic rules for food service employees are to wash hands before engaging in food

preparation and whenever necessary- especially:

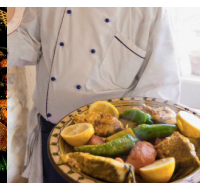
- After touching bare human body parts other than clean hands or clean exposed portions of the arms;
- After using the bathroom;
- After caring for or handling service or aquatic animals;
- After coughing, sneezing, using a handkerchief or disposable tissues, using tobacco, eating or drinking;
- After handling soiled linens, equipment or utensils;
- After handling chemicals, including bottles of cleaner or sanitizer solution;
- During food preparation as often as necessary to remove soil and contamination and to prevent cross contamination when changing tasks;
- When switching between working with raw animal food and ready-to-eat food;
- Before putting on gloves to initiate a task that involves working with food;
- Between changing gloves to work with food; and
- After engaging in other activities that contaminate the hands.

Alternative Operating Procedures

Food employees may not have bare hand contact with ready-to-eat food unless the operator has submitted a written Alternative Operating Procedure (AOP) to their inspector for review and approval. For an optional pre-written fill-in-the-blank AOP and additional information, visit <http://www.myfloridalicense.com/DBPR/hotels-restaurants/forms-publications/>.

Consumer Advisory

Any establishment that offers raw or under-cooked animal foods must provide a consumer advisory. The advisory may be in the form of brochures, menu advisories, table tents, placards or other effective written means.



Common foods offered raw or undercooked which require a consumer advisory include hamburgers, steak, sashimi and eggs. Typical advisory language is a statement such as "Consuming raw or undercooked meats, poultry, seafood or eggs may increase your risk of foodborne illness, especially if you have certain medical conditions."

When raw or undercooked animal foods are used as ingredients in other foods (e.g., sushi, raw eggs in Caesar salad or homemade meringue) it must also be made clear to the consumer that the menu items contain raw or undercooked animal foods.

Complete requirements are included in [Chapter 3-603.11, 2017 FDA Food Code](#).



Oyster Consumer Advisory

Any establishment that offers raw or undercooked oysters must provide a consumer advisory. This advisory may also be in the form of brochures, menu advisories, table tents, placards or other effective written means. However, unlike the general raw animal food consumer advisory, this advisory must be specifically worded per the requirements of Section 61C-4.010(8), Florida Administrative Code. An oyster sign is available in English and Spanish at <http://www.myfloridalicense.com/DBPR/hotels-restaurants/forms-publications/>. If other animal foods are offered raw or undercooked, the notice concerning these foods may be added to the end of the oyster advisory.

Parasite Destruction

Fish (which includes finfish as well as other aquatic animals, such as shrimp, frog, sea urchin, etc.) that is offered raw or undercooked must be frozen under specific time and temperature requirements to destroy naturally occurring parasites prior to service. Cooking fish to a minimum of internal temperature of 145°F kills any parasites present. Common examples of fish that require parasite destruction include wild salmon, squid, octopus, shrimp used for ceviche and mackerel. The freezing time and temperature requirements are:

- Frozen and stored at -4°F or below for 168 hours (7 days) in a freezer; **or**
- Frozen at -31°F or below until solid and stored at -31°F for 15 hours;
or
- Frozen at -31°F or below until solid and stored at -4°F or below for 24 hours.

For effective destruction of parasites, the time the fish is held at the required temperature must be continuous. Most restaurant freezers are not capable of maintaining a constant temperature for the length of time required. If freezing for parasite destruction is conducted onsite, a continuous electronic temperature monitoring device should be used. Many suppliers offer fish that have undergone parasite destruction and will include a statement about freezing on the delivery invoice. Operators must provide proof that the required freezing has occurred.

Clams, mussels, oysters, scallops, certain species of tuna, aquacultured fish that have been fed parasite free formulated feed, and roe that has been removed from the skein may be served raw or undercooked without freezing. These fish are not prone to parasites. Proof of Aquaculture must be provided if applicable. Complete requirements are included in [Chapter 3-402.11, 2017 FDA Food Code](#).



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